



Income Tax Department

Ministry of Finance, Government of India

Penalty for failure to deduct tax at source.

448. If any person fails to—

- (a) deduct the whole or any part of the tax as required under Chapter XIX-B; or
- (b) pay or ensure the payment of, the whole or any part of the tax as required by or under—
 - (i) Note 2 below the Table in section 393(3); or
 - (ii) Note 6 to section 393(1) (Table: Sl. No. 8),

then, the Assessing Officer may impose on him, a penalty equal to the tax which such person failed to deduct or pay or ensure payment of, as aforesaid.

